



CHAPTER v.

An Act to revive the powers of the Wadebridge Rural District Council for the construction of waterworks and for other purposes. [10th December 1945.]

WHEREAS the rural district of Wadebridge in the county of Cornwall is under the jurisdiction of the Wadebridge Rural District Council and it is the duty of the Council to secure that the said district is supplied with water:

And whereas by the Wadebridge Rural District Council Act 1937 (hereinafter referred to as "the Act of 1937") the Council were empowered to construct waterworks and to supply water as in the said Act provided:

1 Edw. 8. &
1 Geo. 6.
c. xcii.

And whereas by section 7 of the Act of 1937 it was enacted that if the said waterworks were not completed within the period expiring on the first day of October nineteen hundred and forty-three then on the expiration of that period the powers granted by the Act of 1937 for the making thereof or otherwise in relation thereto should cease except as to such of them or so much thereof respectively as should then be completed:

And whereas owing to the war and other factors it has only been possible to carry out such works as were urgently required for military purposes and the powers for the construction of the main part of the water scheme have lapsed:

And whereas it is expedient that the said powers should be revived as by this Act provided:

And whereas plans and sections showing the lines and levels of the works authorised by the Act of 1937 and also a book of reference containing the names of the owners and lessees or reputed owners or lessees and of the occupiers of the lands required or which might be taken for the purposes or under the powers of the Act of 1937 were duly

deposited with the clerk of the county council of the administrative county of Cornwall in connection with the Bill for the Act of 1937:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

23 & 24 Geo. 5. c. 51. And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 so far as the same are applicable have been observed:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title.

1. This Act may be cited as the Wadebridge Rural District Council Act 1945.

Interpretation.

2. In this Act—

“ the Council ” means the Wadebridge Rural District Council;

“ the Act of 1937 ” means the Wadebridge Rural District Council Act 1937;

“ the limits of supply ” means the limits within which the Council are from time to time authorised to supply water.

Revival of powers for construction of waterworks.

3. The powers conferred upon the Council by the Act of 1937 for the construction of the waterworks described in and authorised by the Act of 1937 are hereby revived and may be exercised by the Council until the first day of October nineteen hundred and fifty-three and the Act of 1937 shall be read and construed as if the period limited by section 7 (Period for completion of works) of the Act of 1937 for the completion of the said waterworks had been the period limited by this Act.

Power to borrow.

4.—(1) The provisions of section 69 (Power to borrow) of the Act of 1937 shall be read and have effect as if the powers of borrowing for the construction of the waterworks authorised by the Act of 1937 were increased from forty-five thousand two hundred and fifty-three pounds to sixty-seven thousand eight hundred and eighty pounds and for water mains and other waterworks purposes were increased from thirty-three thousand eight hundred and forty pounds to fifty thousand seven hundred and sixty pounds.

(2) It shall not be lawful to exercise the powers of borrowing conferred by this Act otherwise than in compliance with the provisions of the Local Authorities Loans Act 1945.

5.—(1) Subject to the provisions of the Act of 1937 and this Act the Council shall have and may exercise the powers which a local authority who supply water under the Public Health Act 1936 would have under section 119 of that Act with respect to the carrying of water mains within and without their district.

Application of section 119 of Public Health Act 1936.
26 Geo. 5 & 1 Edw. 8.
c. 49.

(2) The provisions of this section shall be in addition to and not in derogation of any powers exercisable by the Council under any other enactment.

6. If proposals are formulated for the constitution of a joint board for collecting or impounding the waters of the De Lank River for the purpose of supplying water in the county of Cornwall and the Minister of Health is satisfied that the inclusion of the Council as a constituent member thereof is expedient on the ground that such inclusion would facilitate the supply of water over a wide area the Minister of Health may require the Council to become a constituent member of the board on such terms and conditions as may be settled between the statutory water undertakers concerned and are approved by him or failing settlement determined by him and thereupon the Council shall not oppose the principle of any Bill or of any order of the said Minister for the constitution of the board or for transferring to the board the powers of the Council under the Act of 1937 and this Act.

Saving for future joint Board.

7.—(1) The powers of the Council under section 67 (Contracts for supplying water in bulk) of the Act of 1937 shall not be exercised without the consent of the Minister of Health in relation to any local authority body company or persons supplying water or authorised under parliamentary authority to supply water in an area wholly outside the rural district of Wadebridge.

As to supplies of water in bulk.

(2) Notwithstanding anything contained in section 67 (Contracts for supplying water in bulk) of the Act of 1937 the Council may enter into and carry into effect agreements with any authority body company or person supplying water under parliamentary authority for a supply of water in bulk on such terms and conditions as may be agreed upon.

8. Section 40 (As to supply to Newquay and District Water Company) of the Act of 1937 is hereby repealed and the notice in writing given to the clerk thereunder is hereby cancelled.

Repeal of section 40 of Act of 1937.

9. For the purposes so far as applicable of the provisions of the Town and Country Planning Acts 1932 and 1943 and the Town and Country Planning Act 1944 and of any order scheme or regulation made under those Acts or any enactment repealed by those Acts and for the time being in force this Act shall be deemed to have become law before the

Saving for town and country planning.
22 & 23 Geo. 5.
c. 48.
6 & 7 Geo. 6.
c. 29.

7 & 8 Geo. 6.
c. 47.

Saving for
emergency
powers of
Treasury.

2 & 3 Geo. 6.
c. 62.

3 & 4 Geo. 6.
c. 20.

Saving for Water
Act 1945.

8 & 9 Geo. 6. c. 42.

Costs of Act.

commencement of the said Town and Country Planning Acts 1932 and 1943 and the Town and Country Planning Act 1944.

10. So long as the making of an issue of capital in the United Kingdom without the consent of the Treasury is prohibited by regulations made under the Emergency Powers (Defence) Acts 1939 and 1940 it shall not be lawful to exercise the powers of borrowing conferred by this Act without such consent.

11. This Act shall be deemed to have been passed before the coming into operation of the Water Act 1945.

12. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council out of the general rate fund and general rate.

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